Electoral Code

OF

The Guild of Students

University of the West Indies

Cave Hill Campus

The Electoral Code of the Guild of Students

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CHAPTER I

THE CODE

Authority of the Code

1. This Code is made pursuant to the provisions of section 93 of the Constitution of the Guild of Students of the University of the West Indies at Cave Hill.

Supremacy of the Code

2. Notwithstanding section 5(1) of the Constitution, where there is any inconsistency between this *Code* and the Constitution, the provisions of this Code shall prevail.

Object and Purpose of the Code

3. (1) The purpose of this Code is to provide for the conduct of all elections to offices of the Council of the Guild of Students and to ensure that all such elections are conducted in a manner which is free, fair, impartial and reflective of the democratic will of the members of the Guild of Students.

(2) The principles upon which this Code is founded are:

(a) Fairness;

(b) Impartiality;

(c) Transparency;

(d) Professionalism;

(e) Integrity;

(f) Competence;

(g) Independence; and

(h) Non-discrimination and equal treatment.

(3) Every person exercising a function in relation to the conduct of elections under this Code shall have regard to the principles set out in subsection (2) and shall uphold those principles in the execution of their functions.

(4) The Clubs, Societies, Island Associations, Halls of Residence Associations and other associations within the jurisdiction of the Guild of Students may have regard to the provisions of this Code in relation to their own elections.

Applicability of the Code

4. (1) Subject to the provisions of subsection (2), the provisions of this Code shall apply to all elections to offices of the Council of the Guild of Students.

(2) The provisions of this Code may be varied by the Returning Officer in relation to a specific election, provided that such variation is specifically justified in writing on the basis of the exigencies of the situation and that such variation is approved by a two-thirds majority of the Guild Council, excluding the members of the Council, if any, contesting that election.

(3) Any variation of the provisions of this Code made under subsection (2) shall be reviewable under the process set out in Chapter VI of this Code.

Interpretation

5. (1) In this Code,

"Annual General Election" means the election held for the purposes of section 14;

"Candidate" means a person whose application for candidacy has been approved by the Returning Officer and who has been confirmed by the Guild Elections Office as a candidate in accordance with the provisions of section 21(5);

"Constitution" means the Constitution of the Guild of Students;

"Council of the Guild of Students" means the body established by section 22 of the Constitution of the Guild of Students, and "Guild Council" shall have the same meaning;

"Election" means an election to which this Code applies;

"Election official" includes the Returning Officer, officers of the Guild Elections Office, presiding officers at polling stations and polling clerks;

"University" means the University of the West Indies, Cave Hill Campus;

(2) Any reference in this *Code* to a decision by a body, or the forming of a decision in the opinion or judgement of a body, shall be construed to mean a decision of a majority of that body, unless a contrary intention appears.

(3) For the purposes of this *Code*, a majority of any body shall be construed to mean a simple majority of those present and voting, unless a contrary intention appears.

(4) For the purposes of this *Code*, the computation of dates shall not include weekends or public holidays in Barbados and references to one gender shall be to both.

CHAPTER II

THE GOVERNANCE OF THE ELECTORAL PROCESS

Part 1

Institutions for the Administration of the Electoral Process

Establishment of institutions to administer the electoral process

6. (1) The principal organ for the administration of the electoral process of the Guild shall be the Guild Elections Office.

(2) The ancillary institutions supporting the administration of the electoral process of the Guild shall be The Council of the Guild of Students and the Office of Student Services.

Part 2

The Guild Elections Office

Establishment of the Guild Elections Office

7. The Guild Elections Office shall be the principal institution for the administration of elections of the Guild of Students.

Constitution of the Guild Elections Office

8. (1) The Guild Elections Office shall be comprised of –

(a) The Returning Officer;

(b) The Deputy Returning Officer;

(c) The Secretary of the Guild Elections Office; and

(d) The Assistant Returning Officers.

(2) The officers of the Guild Elections Office, other than the Returning Officer, shall be appointed by the Returning Officer.

(3) The Returning Officer shall appoint such number of Assistant Returning Officers as he deems fit, and, in his judgement, he may designate some of those officers as Principal Assistant Returning Officers and Deputy Assistant Returning Officers.

(4) The Returning Officer may assign specific responsibilities to officers of the Guild Elections Office, as he sees fit.

(5) In any period during which the Returning Officer is absent or incapacitated, the Deputy Returning Officer shall act as Returning Officer and shall have all the powers and duties attaching thereto.

(6) The Returning Officer may remove any officer of the Guild Elections Office.

Duties of the Guild Elections Office

9. The Guild Elections Office shall be responsible for the conduct of all elections to which this Code applies and all matters related thereto.

Duties of the Returning Officer

10. (1) The Returning Officer shall be the chief electoral officer of the Guild of Students.

(2) The Returning Officer shall –

(a) Be responsible for the administration of this *Code*;

(b) Appoint the officers of the Guild Elections Office subject to section 8;

(c) Determine the electoral calendar for the Annual General Election and all other elections and publish the same in accordance with the provisions of section 16;

(d) Designate certain locations as polling stations in accordance with the provisions of section 30;

(e) Preside at the counting of ballots in elections held under this *Code* in accordance with the provisions of section 47; and

(f) Perform such other functions at the *Constitution*, this *Code* or any by-law may direct.

Independence of the Guild Elections Office to be respected

11. (1) No person shall attempt to influence, induce, inveigle, entice, coerce or otherwise affect the independence of the Returning Officer or any officer of the Guild Elections Office.

(2) The members of the Guild Council shall respect the independence of the Returning Officer and the Guild Elections Office.

(3) No officer of the Guild Elections Office shall participate, either actively or passively, in any campaign for election to which this Code applies, and every such officer

shall conduct himself according to the highest principles of integrity and impartiality at all times.

Part 3

Ancillary Institutions for Electoral Administration

Duties of the Guild Council

12. (1) The Guild Council shall take care to safeguard the integrity and independence of the electoral process.

(2) The Guild President shall ensure that the Guild Elections Office is adequately resourced and shall assist the Returning Officer in ensuring that that goal is met.

(3) The Guild Treasurer shall ensure the disbursement, in a timely manner, of funds needed by the Guild Elections Office.

Duties of the Office of Student Services

13. The Office of Student Services shall –

(a) Support the Guild Elections Office in upholding the fairness and impartiality of the electoral process;

(b) Be the main liaison between the Guild Elections Office and the administration of the University; and

(c) Provide the Guild Elections Office with the technical support required for the conduct of elections, including but not limited to the official roll of enrolled students.

CHAPTER III

THE ANNUAL GENERAL ELECTION

Part 1

General Provisions

Provision for the Annual General Election

14. There shall be an Annual General Election in every year which shall be the principal election for the filling of elected offices on the Council of the Guild of Students.

Events associated with Annual General Election

15. For every Annual General Election, there shall be, in the following order –

(a) The nomination period;

(b) The filing period;

(c) The campaigning period;

(d) The polling day;

(e) The count; and

(f) The declaration of results.

Announcement of election timetable

16. (1) The Returning Officer shall publish the timetable for the election no more than twenty-one days after the start of the second semester in every academic year.

(2) The timetable referred to in subsection (1) shall include the dates for all of the events associated with an Annual General Election set out in section 15.

Part 2

The Nomination Period

Purpose of nomination period

17. The nomination period shall be the period during which interested persons indicate their intention to file papers in support of their candidacy for a particular elected office of the Guild.

Duration of nomination period

18. (1) Subject to subsection (2), the nomination period shall last for not less than seven days and no more than fourteen days.

(2) Once the nomination period has started, the Returning Officer may extend the nomination period if, in his judgment, there are an insufficient number of offices for which nominations have been made,

Provided that the duration of the nomination period shall not, in any case, exceed thirty days.

(3) In this section, the expression "day" shall be construed as referring to calendar days.

Requirements of nomination period

19. (1) Prior to the commencement of every nomination period, the Returning Officer shall publish the nomination form set out in the *First Schedule*.

(2) Every person wishing to stand for election to an office being contested in that election shall complete the said nomination form and submit it before the end of the nomination period, and every such person shall secure a proposer and seconder to his nomination.

(3) Every proposer and seconder –

(a) Must be a full member of the Guild of Students, being a fully matriculated student enrolled at the University;

(b) Must not be an incumbent member of the Council of the Guild of Students;

(c) Must not have submitted a nomination form on behalf of himself for another office and must not intend to do so during the election cycle;

(d) Must not be an election official.

(4) The proposer and seconder referred to in subsection (2) shall signify his assent to propose or second, as the case may be, the nomination of the applicant.

(5) Based upon the information disclosed on the nomination form, the Returning Officer shall verify the identity of every applicant and his proposer and seconder and ensure that those persons are enrolled students of the University in good financial standing.

(6) Within a reasonable time after the end of the nomination period, the Returning Officer shall notify every applicant that his application for candidacy has been provisionally approved, once the Returning Officer has satisfied himself as to the veracity of the application.

(7) Every applicant who receives a notice under subsection (5) shall then be known as a confirmed applicant.

Part 3

The Filing Period

Purpose of filing period

20. The filing period shall be the period during which confirmed applicants shall file the required documents in support of their candidacy.

Requirements of filing period

21. (1) The Returning Officer shall disseminate to every confirmed applicant an election packet at the same time at which he notifies the applicant of his confirmed status pursuant to the provisions of section 19(5).

(2) The filing period shall be deemed to commence upon the action of the Returning Officer under subsection (1).

(3) Every confirmed applicant shall complete the forms included within the election packet and submit those forms before the close of the filing period.

(4) In addition to the forms referred to in subsection (2), every confirmed applicant shall also submit to the Guild Elections Office the name and contact information of his intended campaign manager, if he has one, and other intended members of his campaign team.

(5) Within a reasonable time after the end of the filing period, the Returning Officer shall notify every confirmed applicant that he has been officially registered as a candidate for the election once the Returning Officer has satisfied himself that the applicant has complied with all of the requirements of the filing period.

Contents of election packet

22. The election packet referred to in section 21 shall contain –

(a) A copy of the Constitution of the Guild of Students;

(b) A copy of this Code;

(c) The official election timetable prepared by the Guild Elections Office;

(d) The Confirmation of Candidacy Declaration set out in the *First Schedule*;

(e) The Information Release Consent Form set out in the *First Schedule*;

(f) The Elections Complain Resolution Agreement Form set out in the *First Schedule*.

Duration of filing period

23. (1) The filing period shall last for not less than five days and not more than 10 days.

(2) In this section, the expression "day" shall be construed as referring to calendar days.

Provision for holding of candidate meeting

24. (1) During the filing period, the Guild Elections Office shall hold a candidate meeting, attendance at which shall be mandatory for all confirmed applicants.

(2) The purpose of the candidate meeting shall be to discuss with the confirmed applicants the requirements of the filing period under the provisions of this *Part*, the procedure for the election, the responsibilities of the offices being contested and such other related matters as the Returning Officer deems fit to address at that meeting.

Part 4

The Campaign Period

Commencement of the campaign period

25. Within a reasonable time after the end of the filing period, the Returning Officer shall publish a notice to all students declaring the start of the campaign period and officially identifying all candidates running in the election and the offices which they seek.

Duration of the campaign period

26. (1) The campaign period shall last not less than fourteen days and not more than twenty-one days.

(2) In this section, the expression "day" shall be construed as referring to calendar days.

Holding of candidate debates

27. (1) During the campaign period, the Guild Elections Office shall host such number of debates between the candidates as the Office deems fit.

(2) Every candidate shall be required to participate in a debate hosted by the Guild Elections Office under subsection (1).

(3) The Returning Officer shall determine the rules and format for debates held under subsection (1).

Part 5

Polling Day

Date of polling day

28. (1) Polling day for the Annual General Election shall be the day fixed for the holding of a poll of electors at an election.

(2) The date fixed for polling day shall be no later than twenty-one days before the start of the examination period in the second semester of every year.

(3) The date fixed for polling day shall be determined by the Returning Officer and he shall publish that date pursuant to the provisions of section 15.

Alteration of polling day after announcement

29. Where the Returning Officer has already given notice of the day fixed for polling day, pursuant to section 15 and section 28, and, in his judgement, it is expedient to alter that date, he shall give notice of the new date for polling day.

Designation of polling stations

30. (1) The Returning Officer shall designate as polling stations such locations across the campus of the University as he deems fit, with a view to ensuring that students of every Faculty and Hall of Residence have an equal opportunity to cast their vote.

(2) The Returning Officer shall provide a sufficient number of polling stations and shall allot the electors to the polling stations in such manner as he thinks most convenient. One or more polling stations may be provided in the same room.

(3) For the avoidance of doubt, the Returning Officer shall be empowered to designate as polling stations areas located outside of the main campus of the University, in particular the annexes of the University, so as to facilitate the voting of students whose classes are off-campus.

(4) The Returning Officer shall notify the candidates and the electorate as to the designated polling stations in advance of every polling day.

(5) The Returning Officer shall allot sections of the electorate to specific polling stations as he sees fit.

Operating hours of polling stations

31. (1) Every polling station shall be open for no less than eleven hours, with the suggested time frame being 9.00 a.m. to 9.00 p.m.

(2) Notwithstanding the provisions of subsection (1), the Returning Officer may extend the time for a polling station to close where, in his judgement, circumstances having arisen such that fairness requires an extension of time,

Provided that no polling station shall be kept open after 10.00 p.m. on polling day.

(3) The Returning Officer shall notify the candidates and the electorate of any extension ordered under subsection (2).

Temporary closure of polling station

32. (1) If at any point during polling day, the proceedings at any polling station are interrupted or obstructed (or threatened to be interrupted or obstructed) by riot, flood, other act of God or by any other cause whatever, the Returning Officer may order the temporary closure of the said polling station.

(2) When the Returning Officer makes an order under subsection (1), he shall cause that fact, together with the reason for the order, to be notified to all candidates, the Office of Student Services, and the student population as soon as possible after the making of the order.

(3) The Returning Officer shall work expeditiously to remove the conditions resulting in the temporary closure of the polling station and to enable the polling station to be reopened as quickly as possible, failing which he shall designate another location as a polling station in lieu thereof, and he shall cause this fact to be notified to the parties referred to in subsection (2).

(4) If the conditions referred to in subsection (1) are so insuperable as to make the continuance of the election at that polling station impossible, and no other place may be

designated as a polling station as an alternative, then the Returning Officer may order the stopping of the election at that polling station and order that the polling day be rerun on a later date.

(5) The Returning Officer shall cause the orders made under subsection (4) to be notified to the parties referred to in subsection (2).

Employment of persons for polling day

33. (1) The Returning Officer may employ persons to assist in the management of the election on polling day.

(2) The Returning Officer shall appoint a presiding officer for each polling station.

(3) The Returning Officer shall appoint such number of polling clerks as may be necessary for each polling station.

(4) No person employed under subsection (1) or appointed as a presiding officer or polling clerk shall be a candidate in the election nor shall he be a public or private supporter of any campaign or candidate.

(5) Every person appointed as a presiding officer or a polling clerk shall observe the highest principles of impartiality, fairness and discretion in the exercise of his duties under this Part.

(6) The Returning Officer shall notify all candidates of the persons appointed as presiding officers and polling clerks in advance of polling day.

(7) For the avoidance of doubt, the Returning Officer may, if he thinks fit, preside at a polling station, or permit any other officer of the Guild Elections Office to preside or otherwise work at a polling station and the provisions of these rules relating to a presiding officer shall apply to the Returning Officer or other officer of the Guild Elections Office *mutatis mutandis*.

(8) Every election official shall make a declaration of office in the form set out in the *Second Schedule*.

(9) For the purposes of this Part, references to "the presiding officer" shall be construed as a reference to the presiding officer at a particular polling station, unless the context otherwise indicates.

Equipment of polling stations

34. (1) The Returning Officer shall provide each presiding officer with such number of ballot boxes and ballot papers as in the opinion of the Returning Officer may be necessary.

(2) The Returning Officer shall provide each polling station with

(a) materials to enable voters to mark the ballot papers;

(b) instruments for affixing thereon the official mark; and

(c) copies of the registers of electors or such part thereof as contains the names of the electors allotted to the station.

(3) Every polling station shall be equipped with voting booths partially concealed by screen wherein voters may mark their ballot.

(4) A notice in giving directions for the guidance of the voters in voting, shall be printed in conspicuous characters and exhibited in every polling station and in every voting booth of every polling station.

Sealing of ballot boxes

35. (1) Immediately before the commencement of the poll, the presiding officer shall show the ballot box empty to such persons, if any, as are present in the polling station, so that they may see that it is empty, and shall then lock it and keep it in his view for the receipt of ballot papers and keep it so locked.

(2) Every ballot box shall be so constructed that the ballot papers can be put therein, but cannot be withdrawn therefrom, without the box being unlocked.

(3) Every ballot box shall remain locked until it is ready to be opened at the counting station.

(4) No ballot box shall be left unattended at any time after the commencement of the poll.

The ballot papers

36. (1) The ballot of every voter shall consist of a ballot paper containing the names of confirmed candidates, and no others shall be entitled to have their names inserted in the ballot paper.

(2) A ballot paper shall –

(a) contain the names of the candidates and the office to which they seek election;

(b) contain a space for voters to mark their ballots to "re-open nominations";

(c) be capable of being folded; and

(d) be affixed with the official mark as provided for in section 38.

(3) The requirement for a ballot paper to be capable of folding provided for under subsection (2)(c) shall not apply in respect of ballots used for an election in which electronic ballot tabulators are being used.

(4) The order of the names in the ballot paper shall be alphabetical by last name for each office, and the offices shall be listed in descending order as they appear in section 56.

Voting shall be by secret ballot

37. (1) Voting shall be by secret ballot and no person shall attempt to discover for whom any other person voted.

(2) The ballot paper given to a particular voter shall bear no special, identifying mark, and every ballot paper shall be identical.

(3) No person who has voted at the election shall be required to state for whom he voted for any purpose whatever.

The official mark

38. (1) The polling clerk shall, before handing the ballot paper to the voter, affix the official mark to the ballot paper, as proof that the ballot paper was validly given to a verified voter.

(2) The official mark shall be the stamp bearing the logo of the Guild Elections Office or any other mark designated by the Returning Officer as the official mark.

Verification of voters

39. (1) No person shall be issued a ballot paper unless his name appears on the register of electors and he is able to produce his student identification card, at the polling station to which he has been allotted, for inspection by the polling clerk, so as to verify his identity.

(2) Notwithstanding subsection (1), a ballot paper shall be issued to a person whose name appears on the register but who is unable to produce an identification card, if he satisfies the presiding officer –

(a) that he has not been issued with an identification card, or

(b) that he has been issued with an identification card which is lost or destroyed,

Provided that he can demonstrate his identity by the production of another identifying document, such as a national identity document, and that he can satisfy the presiding officer that he is the person whose name appears on the register.

(3) A person whose name appears on the register but who is unable to produce an identification card and who does not satisfy the presiding officer as to his identity shall have the right to demand the attendance of the Returning Officer at the polling station in order that he may appeal the decision of the presiding officer,

Provided that where the Returning Officer is unavailable, the Deputy Returning Officer shall act in his stead.

(4) The decision of the Returning Officer under subsection (3) shall be final.

(5) The presiding officer shall record the names of all voters issued ballot papers under the provisions of subsection (2) and subsection (3).

(6) For the purposes of this section, the expression "register of electors" includes an extract from the register of electors and "register" has the same meaning.

Voting procedure

40. (1) When the presiding officer is satisfied as to the identity of the voter in accordance with section 39, he shall affix the official mark to a ballot paper and give that ballot paper to the voter.

(2) When the ballot paper has been given to the voter, the presiding officer or polling clerk shall insert the appropriate notation in the register of electors to signify that the voter has voted, so as to prevent a voter from voting again later. The presiding officer or polling clerk shall also keep an independent tally of the number of voters issued ballots.

(3) When the voter has received the ballot paper, he shall be directed to the voting booth where he will, using the instrument provided, mark his ballot by placing a cross ('X') in the space opposite the name of the candidate for whom he wishes to vote.

(4) Once the voter has marked his ballot paper, he will fold the ballot paper so as to obscure the side on which he voted, and leaving the voting booth will, without showing the front of the paper to any person, put the paper into the ballot box, and forthwith leave the polling station.

(5) Where voting is being conducted by electronic voting machine, rather than marking the ballot with an X, the voter shall be directed to make the appropriate marking to enable the ballot to be read by the counting machine and rather than folding the ballot, the voter shall place his completed ballot in a privacy sleeve provided and then the ballot shall be fed into the electronic ballot tally machine, ensuring that the side of the ballot showing the voter's vote is not visible.

Spoilt ballot paper

41. (1) A voter who has inadvertently dealt with his ballot paper in such manner that it does not accurately show his voting intention may request another ballot paper and that first ballot paper shall be immediately cancelled, recorded as spoilt and shall not be cast.

(2) The presiding officer shall record the number of spoilt ballots at his polling station, and he shall retain in a marked folder the spoilt ballots returned to him.

Provision for differently abled voters

42. (1) Provision shall be made for persons to vote who are incapacitated by blindness, other visual impairment or other physical cause or by inability to read from being able to vote in accordance with the provisions of this Part ("a differently abled voter").

(2) A differently abled voter may present himself at a polling station, accompanied by a companion, and declare to the presiding officer that he is a differently abled voter and that he wishes for his companion to vote in his behalf.

(3) Once the presiding officer is satisfied that the person is a differently abled voter, he shall require the voter's companion to make a written declaration in the form set out in the *Second Schedule*.

(4) Once the companion has made the declaration, the presiding officer shall permit him to accompany the differently abled voter to the voting booth where he shall mark the ballot for the voter, in the manner in which the voter intends to vote and shall deposit the ballot in the ballot box, in accordance with the provisions of section 40.

(5) The presiding officer shall record the name and identification number of every differently abled voter and companion who votes at a polling station.

(6) Where the differently abled voter has no companion, the presiding officer himself shall act as the voter's companion and perform the functions set out in subsection (4) and he shall record the fact that he acted as the voter's companion.

Procedure at close of polls

43. (1) At the close of polls as defined in section 31, intending voters already in the voting line shall be permitted to vote, but no person shall be permitted to join the voting line after the close of polls.

(2) Once the last person in the voting line mentioned in subsection (1) has deposited their ballot in the ballot box, the polling station shall be closed, and the presiding officer shall seal the aperture of the ballot box by means of tape or otherwise.

(3) An officer of the Guild Elections Office shall collect the ballot box and shall sign a declaration that the ballot box was sealed in accordance with subsection (2) which shall be countersigned by the presiding officer and witnessed by a polling clerk.

(4) All ballot boxes shall be expeditiously transported to the place designated the counting station in accordance with the provisions of section 45 and shall be properly guarded and secured while in transit to and on arrival at the counting station.

Keeping order in polling stations

44. (1) It shall be the duty of the presiding officer to keep order at his polling station.

(2) Persons, other than intending voters and election officials, shall not be allowed to congregate in or in the immediate environs of the polling station, and no person shall conduct himself in a loud or boisterous manner in the polling station.

(3) A person who misconducts himself in a polling station or fails to obey the lawful orders of the presiding officer may immediately, by order of the presiding officer, be removed from the polling station; and the person so removed shall not, without the permission of the presiding officer, enter the polling station again that day.

(4) The powers conferred by this section shall not be exercised so as to unfairly prevent a voter who is otherwise entitled to vote at a polling station from having an opportunity of voting at that station.

Part 6

The Count

Designation of counting station

45. (1) The Returning Officer shall designate a place as a counting station for the purposes of counting the votes at the conclusion of the polls.

(2) The Returning Officer shall notify the candidates of the place designated as the counting station under subsection (1).

(3) In selecting a place as a counting station, the Returning Officer shall have regard to the safety of the place, the ability to control and restrict movement in the place and the general appropriateness of the place to the counting of votes.

(4) No person, other than the election officials and the persons appointed as counting agents under section 46, shall be permitted to be within the counting station during the count.

Provision for counting agents

46. (1) A candidate may appoint one person as his counting agent and that person shall be the official representative of the candidate at the count.

(2) A candidate may appoint himself to be his counting agent.

(3) A candidate shall notify the Returning Officer of his appointment of a counting agent before polling day or by the deadline set by the Returning Officer.

(4) A counting agent shall be permitted to observe the counting of the ballots for the election to the office for which his candidate ran.

(5) The Returning Officer may order that counting agents relinquish their cellular phones and other electronic devices and that they be restricted from leaving the counting station until the count is complete,

Provided that the Returning Officer make clear to counting agents and their candidates that this will be the case before the counting agent enters the counting station.

(6) Counting agents shall make the declaration set out in the *Second Schedule*.

Conduct of count

47. (1) The Returning Officer shall preside over the count.

(2) The count shall not start until all ballot boxes have been deposited at the counting station.

(3) The votes shall be counted by hand by the officers of the Guild Elections Office and/or other persons appointed by the Returning Officer as counting clerks.

(4) The Returning Officer shall determine the order in which the count should take place.

(5) Before counting the votes within, the Returning Officer or his agent shall show the persons present in the room that the ballot box aperture is sealed in accordance with section 43(2) and that the box is locked.

(6) The Returning Officer or his agent shall then unlock and open the box and remove one ballot paper at a time holding it up to all present, showing the reverse side bearing the official mark and calling out the candidate for whom the ballot paper was marked. He shall then pass the ballot paper to his assistant who shall, in like manner, hold it up, showing the side bearing the official mark and calling out the candidate for whom the ballot paper was marked.

(7) Not less than two election officials shall take separate and independent tallies of the votes cast for each candidate, and these officials shall record the vote cast for a particular candidate after hearing both persons in subsection (6) declare for whom the vote was cast.

(8) Once a vote has been recorded by the recorders, it shall be struck as spent by marking through with pen or marker or piercing with a paper spike or other means.

(9) This process shall be repeated until all ballots in the ballot box have been removed, whereupon the Returning Officer or his agent will lift the box showing those present that it is empty, and the process shall move on to the next ballot box.

(10) Where the final tallies of the recorders under subsection (7) are not the same, the process of counting the ballots shall be repeated.

(11) A counting agent has the right to request closer inspection of a ballot paper.

(12) Notwithstanding the provisions of this section, where ballots are being counted by an electronic ballot tabulator, the tabulation roll shall be printed or the tabulation data otherwise accessed, in the presence of the counting agents who shall all have the right to inspect the data sheet.

Provision for rejection of ballots during count

48. (1) Subject to subsection (2), during the counting of ballots by hand, the Returning Officer or his agent may reject a ballot which –

(a) Does not bear the official mark;

(b) Bears several marks for different candidates;

(c) Includes notation intended to identify the voter; or

(d) Is unmarked or is wholly unclear or uncertain as to the candidate for whom the voter intended to vote.

(2) The Returning Officer, after consultation with the election officials and the counting agents present, may accept a ballot which would otherwise be rejected by virtue of subsection (1)(a), if he is satisfied that notwithstanding the absence of the mark, the ballot is a *bona fide* ballot,

Provided that the acceptance of such a ballot shall be specially recorded as well as the name of the candidate for whom such ballot was cast and such ballots shall be retained separately in a marked folder.

(3) A ballot paper on which the vote is marked—

(a) elsewhere than in the proper place; or

(b) otherwise than by means of a cross; or

(c) by more than one mark,

shall not because of this be deemed to be void if an intention that the vote be for one or other of the candidates clearly appears, and the way the paper is marked does not of itself identify the voter and it is not shown that he can be identified thereby.

(4) A record shall be kept of all ballots rejected and the reasons for rejection, those being –

(a) want of official mark;

(b) voting for more than one candidate;

(c) writing or mark by which voter could be identified; or

(d) unmarked or wholly void for uncertainty.

(5) A counting agent may object to the rejection of any ballot and such objection shall be noted.

(6) A counting agent may request the rejection of any ballot on the grounds identified in this section and such request shall be noted.

(7) In all cases, the decision of the Returning Officer on any question arising in respect of a ballot paper shall be final but shall be subject to review on an election complaint lodged pursuant to the provisions of *Chapter VI*.

Provisions for requesting recount

49. (1) Where, upon the conclusion of the count of the votes for a particular race, there is found to be a margin of votes between the apparent winner and the next-placed person of less than 4%, a counting agent may request a recount,

Provided that this subsection only apples to instances where the votes were counted by hand.

(2) The Returning Officer shall determine whether a recount shall be undertaken, and this decision shall be subject to review on an election complaint lodged pursuant to the provisions of *Chapter VI*.

(3) In making the decision under subsection (2), the Returning Officer shall have regard to the interests of fairness, whether any evidence exists showing a possibility of there having been an error in the initial count and the best interest of the electoral process.

(4) Should the Returning Officer authorise a recount under subsection (2) and the result of the recount is the same as on the first count or is nonetheless still within the range mentioned in subsection (1), a counting agent may request a further recount.

(5) The Returning Officer may refuse a request for a further recount, or he may order a further recount immediately or to be done at a later date.

(6) Requests for a recount, together with the reasons for granting or objecting to a request for recount, shall be recorded.

Procedure for equality of votes

50. Where, after the count of the votes (including any re-count) is completed, an equality of votes is found to exist between any candidates and the addition of a vote would entitle any of those candidates to be declared elected, a contingent election shall be held in accordance with the provisions of section 53.

Declaration of preliminary results

51. (1) Upon the conclusion of the count, the Returning Officer shall make the Declaration of Results as set out in the *Second Schedule* for each office being contested which shall be witnessed by a person present at the count.

(2) The Returning Officer shall announce or cause to be announced publicly the results of the election for each office, no later than six hours after the close of the polls, unless a recount has been ordered under section 49.

Declaration of official results

52. The Returning Officer shall notify the Office of Student Services and the Administration of the University of the official results of the election no more than four days after polling day.

Part 7

Aftermath of Election

Contingent election to be held for unfilled offices

53. (1) Where no person has been validly elected to an office contested in the election by virtue of the fact that –

(a) There was an equality of votes between any candidates within the meaning of section 50; or

(b) A plurality of votes was cast to reopen nominations,

a contingent election shall be held to fill that office.

(2) Where a contingent election is required by subsection (1), the Returning Officer shall fix as the polling day for that election a date no more than twenty-one academic days from the declaration of results.

(3) In fixing the length of the nomination period, filing period and campaign period for a contingent election held under this section, the Returning Officer shall have regard to the provisions of this Chapter, but shall not be bound by the said provisions.

(4) Other than the matters identified in subsection (3), the provisions of this Chapter shall apply *mutatis mutandis* to a contingent election.

(5) In the event that the result of a contingent election produces a result by which again no person would be validly elected for a reason set out in subsection (1), the incoming Council of the Guild of Students, upon assuming office, shall appoint a person to the unfilled office, as if it were an appointed office.

Appointments to be made to uncontested offices

54. (1) Where an office, which is eligible for election under the provisions of section 56, is not contested in an election, the incoming Council of the Guild of Students, upon assuming office, shall appoint a person to that office, as if it were an appointed office.

(2) For the purposes of this section, an office is not contested in an election –

(a) if no valid nominations have been received within the nomination period, or

(b) if, pursuant to sections 58 and 59, all candidates for an office have withdrawn their candidacy or been disqualified, such that on polling day no votes may be awarded to any person.

Deadline for filing election complaints

55. (1) A person intending to file an election complaint within the meaning of *Chapter VI* shall do so no later than two weeks after the declaration of preliminary results under section 51.

(2) The Electoral Complaints Committee may extend the timeline set out in subsection (1) in respect of a particular application if the Commission is satisfied that the delay was unavoidable, and the interests of justice would be defeated if the complaint was not considered.

CHAPTER IV

RULES GOVERNING CANDIDACY

Offices eligible for election

56. (1) Pursuant to the Constitution, the offices on the Council of the Guild of Students which are eligible for election are –

(a) The President;

(b) The Vice President;

(c) The Postgraduate Representative;

(d) The Secretary;

(e) The Treasurer;

(f) The Public Relations Officer

(g) The Union and Properties Committee Chairperson

(h) The Games Committee Chairperson

(i) The International Affairs Committee Chairperson

(j) The National Affairs Committee Chairperson

(k) The Faculty Representatives –

(i) Faculty of Social Sciences Representative,

(ii) Faculty of Humanities and Education Representative,

(iii) Faculty of Law Representative,

(iv) Faculty of Science and Technology Representative,

(v) Faculty of Medical Sciences Representative,

(vi) Faculty of Culture, Creative and Performing Arts Representative, and

(vii) Faculty of Sport Representative;

(l) The Halls of Residence Chairpersons –

(i) The Frank Worrell Hall Chairperson,

(ii) The Philip Sherlock Hall Chairperson, and

(iii) The Keith Hunte Hall Chairperson;

(2) The electorate for the offices listed in paragraph __ of subsection (1) shall be all students enrolled at the University.

(3) The electorate for the offices listed in paragraph __ of subsection (1) shall be only the students registered in the Faculty which the Faculty Representative will represent.

(4) The electorate for the offices listed in paragraph __ of subsection (1) shall be only the students registered as residents of the Hall which the Hall Chairperson will represent.

Requirements of candidacy

57. A person shall only be eligible to be a candidate for election if –

(a) He is a full member of the Guild, being a fully matriculated student enrolled at the University, and will retain such status for the whole of the term of the incoming Guild;

(b) He is in good financial standing with the University;

(c) He has a grade point average at or above 2.5; and

(d) He has no outstanding disciplinary matters before any academic body of the University, and has had no such matters decided adversely against him within the preceding 12 months.

Withdrawal of candidacy

58. (1) Subject to subsection (2), a person who has been confirmed as an applicant in accordance with the provisions of section 19, or who has been confirmed as a candidate in accordance with the provisions of section 21, may at any time thereafter withdraw his candidacy for that election by instrument in writing to the Returning Officer.

(2) In any year, the Returning Officer may set a deadline after which candidates are not able to have their name removed from the ballot in advance of polling day.

Disqualification of candidacy

59. (1) Any person who makes a false declaration, or fails to make a material declaration, on any of the documents required to be filed in accordance with the provisions of section 19 and section 21 may be liable to have his candidacy withdrawn by the Returning Officer.

(2) The Returning Officer may disqualify a candidate, subject to the provisions of Chapter VI.

CHAPTER V

RULES GOVERNING CAMPAIGNING PERIOD

Part 1

Campaigning Rules

Scope of responsibility of candidates

60. (1) Every candidate shall be personally responsible for the acts and omissions of his campaign.

(2) For the purposes of this section, the expression "campaign" includes acts and omissions of persons, who are employed by, or otherwise are agents, of the candidate or his campaign, committed in the course of serving the interests of the campaign.

(3) A candidate shall be responsible for the acts and omissions of supporters of his campaign, where those acts or omissions are attributable to the campaign.

(4) For the purposes of determining whether acts or omissions are attributable to a campaign under subsection (3), the official or tribunal considering the question shall take account of all relevant factors, including –

(a) whether the campaign was aware, or ought to have been aware, of the act or omission in question;

(b) whether the campaign acted, or could have acted, to prevent, stop or hinder the act or omission in question; and

(c) whether, in all the circumstances, it would be fair, just and reasonable to attribute responsibility to the candidate.

Interference with other campaigns prohibited

61. (1) No person shall interfere with the campaign of a candidate.

(2) For the purposes of this section, interference with a campaign shall include –

(a) unauthorised removal of campaign material;

(b) disruption of campaign activities;

(c) unauthorised interception or accessing of data from a computer system used by a campaign;

(d) harassment or intimidation of officials or supporters of campaign;

(e) impersonation of another candidate or an official of another campaign;

(f) such other acts as might reasonably be considered interference.

Regulations governing campaign materials

62. (1) No candidate shall publish by any means campaign material without first obtaining the approval of the Returning Officer for the publication of such material.

(2) For the purposes of determining whether to grant approval to the publication of campaign material, the Returning Officer shall have regard to the provisions of this section and the general standards of propriety and fairness.

(3) All campaign material must clearly and prominently display the name of the candidate or other person responsible for the material.

(4) No campaign material may include material which –

(a) is defamatory, explicit, profane or deceptive; or

(b) is liable to incite violence or disorder in general or against any particular group; or

(c) promotes violence, hatred, disorder or discrimination; or

(d) is liable to create divisive controversy by its inclusion of tasteless, blasphemous, derogatory or otherwise incendiary material.

(5) No campaign material shall include the logo or other symbol of the Guild of Students or the University or any of its departments or Faculties, used in a way calculated to suggest an endorsement of the campaign.

(6) For the purposes of this section, the expression "campaign materials" includes any sign, banner, leaflet, pamphlet, brochure, poster, audio recording, video, article of clothing, badge, pin or any other material which promotes a candidate or a campaign.

Areas in which campaigning prohibited

63. (1) No person shall campaign in the office of the Council of the Guild of Students.

(2) No person, who is a member of the Council of the Guild of Students, shall utilise the office or any other property held by him by virtue of his status as a Guild Councillor for electoral advantage.

(3) No person shall campaign in the precincts of a polling station on polling day.

(4) No person shall campaign during an academic class at the University, unless the person conducting the class permits.

(5) No person shall campaign on behalf of any candidate before the start of the campaign period has been declared.

Endorsement of candidates

64. (1) Every candidate intending to claim the endorsement of any other person shall first provide a written statement of support from the proposed endorser to the Returning Officer before publicly claiming any such endorsement.

(2) No person shall seek, solicit or secure the endorsement of any person who is an officer of the Guild Elections Office, a presiding officer at a polling station, a polling clerk, a member of the Electoral Complaints Committee or a member of the Electoral Complaints Appeal Tribunal.

Part 2

Election Expenses Rules

Provision for campaign expenditure limit

65. (1) No sum may be paid, and no expense may be incurred, by a candidate or his campaign at an election, whether before, during or after an election, in respect of the conduct or management of the election, in excess of the amount specified in subsection (2) or (3), as the case may be, and a candidate who knowingly acts in contravention of this subsection will have committed an election offence.

(2) For candidates seeking election to the offices referred to in section 56(2) ("campus-wide offices"), the amount referred to in subsection (1) shall be $6,000.

(3) For candidates seeking election to the offices referred to in section 56(3) and (4) ("constituency-based offices"), the amount referred to in subsection (1) shall be $4,000.

(4) For the purposes of this section, the amounts of money are quoted in Barbadian currency.

Submission of campaign expenditure form

66. (1) Every candidate shall submit to the Returning Officer a completed Campaign Expenditure Form no later than noon on polling day.

(2) Failure to submit a completed Campaign Expenditure Form shall be an election offence.

(3) In every year, the Returning Officer shall cause a Campaign Expenditure Form to be designed using an appropriate format and shall disseminate that Form to all candidates at the start of the campaign period.

Content of campaign expenditure form

67. (1) The completed Campaign Expenditure Form shall include –

(a) A list of all items purchased by the campaign, together with the price paid and the name and contact information of the seller;

(b) A list of all gifts and donations received, together with the retail value of such gifts and donations;

(c) A list of all professional services engaged, together with the price paid for such services; and

(d) A list of all materials rented by the campaign, together with the rental cost.

(2) The costs included on the Campaign Expenditure Form shall reflect the actual price paid, noting any discount received.

(3) Goods sold, or services rendered, by the candidate himself to the campaign shall not need to be included on the Campaign Expenditure Form.

Calculation of special expenditures

68. (1) For the purpose of calculating the retail value of gifts and donations in accordance with the provisions of section 68(1)(b), the candidate shall obtain at least two comparative costings and take the average of those costings as the retail value.

(2) The candidate shall set out it in full the source from which he took the two comparative costings referred to in subsection (1).

CHAPTER VI

ELECTION CONTROVERSIES

Part 1

Election Offences

Election officers not to participate in campaign

69. (1) No election officer shall participate in any campaign on behalf of any candidate, whether that participation is active or passive, express or implied, solicited or unsolicited.

(2) No person shall solicit, seek, entice or otherwise obtain, or attempt to obtain, the participation of any election officer in a campaign.

(3) Any election officer who contravenes subsection (1) is liable to be dismissed from office.

(4) Any person who contravenes subsection (2) is liable to be disqualified as a candidate, if the person is a candidate, and in any case, to have the campaign on whose behalf they committed the offending act, suspended.

(5) Without limiting the generality of the provisions of this section, where any breach of this section has been established, the Electoral Complaints Committee may order a recount of the ballots cast in the election, or a rerun of the election, where the Commission is satisfied that the breach was of such a magnitude as to merit either remedy.

(6) For the purposes of this section, the expression "election officer" includes the Returning Officer, an officer of the Guild Elections Office, a presiding officer of a polling station, a polling clerk, a member of the Electoral Complaints Committee or a member of the Electoral Complaints Appeal Tribunal.

Bribery

70. (1) It shall be an election offence to commit bribery.

(2) A person commits bribery who, directly or indirectly, by himself or by any other person on his behalf

(a) gives any money or provides any inducement or does any other thing to the benefit of any voter (or to any other person on behalf of any voter) in order to induce any voter to vote or refrain from voting; or

(b) in consequence of the receipt of any such gift or inducement, procures or engages, promises or endeavours to procure the election of any person or the vote of any person in an election;

(c) corruptly makes any gift or inducement as is specified in paragraph (a) on account of any elector having voted or refrained from voting; or

(d) pays (or causes to be paid) any money to any other person with the intent that such money or any part thereof will be expended in bribery at any election.

(3) The provisions of this section do not extend and shall not be construed to extend to any money paid or agreed to be paid for or on account of any legal expenses incurred in good faith at or concerning an election.

(4) A voter commits bribery who, before or during an election, directly or indirectly by himself or by any other person on his behalf, receives, agrees to receive or contracts for any money, gift, loan or valuable consideration, office, place or employment for himself or for any other person for voting or agreeing to vote or for refraining or agreeing to refrain from voting.

(5) A person commits bribery who, after an election, directly or indirectly by himself or by any other person on his behalf, receives any money or valuable consideration on account of any person having voted or refrained from voting or having induced any other person to vote or refrain from voting.

(6) Any candidate who engages in bribery is liable to be disqualified as a candidate, and any candidate who wins an election, having engaged in bribery, is liable to have their election declared void and be disqualified from taking office.

(7) Any voter who is found to have received a bribe, within the meaning of this section, in order to induce him to vote or refrain from voting is liable to be disqualified from voting, or to have to his vote disqualified from being counted.

(8) For the purposes of this section,

(a) references to giving money includes references to lending, agreeing to give or lend, offering or promising any money or valuable consideration;

(b) reference to voting or refraining from voting includes voting for or refraining from voting for a particular candidate or campaign.

Treating

71. (1) It shall be an election offence to commit the offence of treating.

(2) A person commits the offence of treating who corruptly, by himself or by any other person on his behalf, either before, during or after an election, directly or indirectly gives or provides or pays wholly or in part the expense of giving or providing any food, drink, entertainment or provision to or for any person

(a) for the purpose of corruptly influencing that person or any other person to vote or refrain from voting at such election; or

(b) on account of that person or any other person having voted or refrained from voting or being about to vote or refrain from voting at such election.

(3) Every elector who corruptly accepts or takes any such food, drink, entertainment or provision is also guilty of treating.

(4) A candidate who commits the offence of treating is liable to have his campaign suspended or to be disqualified as a candidate; and a candidate who wins an election who commits the offence of treating is liable to have his election declared void and be disqualified from taking office.

(5) Any voter who commits the offence of treating is liable to be disqualified from voting, or to have to his vote disqualified from being counted.

Undue influence

72. (1) It shall be an election offence to unduly influence a voter.

(2) A person unduly influences a voter who

(a) directly or indirectly, by himself or by any other person on his behalf, uses or threatens to use any force, violence or restraint, or inflicts or threatens to inflict, by himself or by any other person, any temporal or spiritual injury, damage, harm or loss upon or against any person in order to induce or compel that person to vote or refrain from voting at any election, or on account of that person having voted or refrained from voting at any election; or

(b) by abduction, duress or any fraudulent device or contrivance, impedes or prevents the free exercise of the franchise of an elector or thereby compels, induces or prevails upon an elector either to vote or refrain from voting at any election.

(3) A person commits the offence of undue influence who does any act prohibited by section 61, being an act interfering with the activities of a campaign.

(4) A person commits the offence of undue influence who, on polling day, seeks to influence any voter to vote or refrain from voting for any candidate, in the precincts of a polling station.

(5) A candidate who commits an offence under this section is liable to have his campaign suspended or to be disqualified as a candidate; and a candidate who wins an election who commits such an offence is liable to have his election declared void and be disqualified from taking office.

Impersonation of voter

73. (1) It shall be an election offence to impersonate a voter or to aid, abet, counsel or procure the impersonation of a voter.

(2) A person shall commit the offence of impersonation who votes as some other person, whether that person is living or dead or is a fictitious person.

(3) A person who commits an offence under this section is liable to be disqualified from voting, and if he had voted, to have his vote disqualified from being counted.

(4) A candidate who aids, abets, counsels, procures or conspires to commit an offence under this section is liable to be disqualified as a candidate; and a candidate who wins an election who commits such an offence is liable to have his election declared void and be disqualified from taking office.

(5) For the purposes of this section, a person who has presented himself at a polling station and requested a ballot paper for the purpose of voting shall be deemed to have voted, just as if he had actually cast a ballot.

Tampering with official documents

74. (1) A person commits an election offence who

(a) fraudulently publishes any document under the letterhead of the Guild Elections Office or purporting to be from the Guild Elections Office or Returning Officer;

(b) fraudulently defaces or fraudulently destroys any nomination paper; or

(c) fraudulently defaces or fraudulently destroys any ballot paper or the official mark on any ballot paper; or

(d) without due authority supplies any ballot paper to any person; or

(e) fraudulently puts into any ballot box any paper other than the ballot paper which he is authorised by this *Code* to put in; or

(f) fraudulently takes out of the polling station any ballot paper; or

(g) without due authority destroys, takes, opens or otherwise interferes with any ballot box or packet of ballot papers then in use for the purposes of the election; or

(h) fraudulently or without due authority, as the case may be, attempts to do any of the foregoing acts or aids, abets, counsels, procures or conspires to commit any of the foregoing acts.

(2) An election official who commits an offence under this section is liable to be dismissed from his post.

(3) A candidate who commits an offence under this section is liable to have his campaign suspended or to be disqualified as a candidate; and a candidate who wins an election who commits such an offence is liable to have his election declared void and be disqualified from taking office.

Intoxicating liquor not to be sold in Guild Union on polling day

75. (1) It shall be an election offence to sell, offer or expose for sale any intoxicating liquor on the premises of the Guild Union between the opening and closing of polls on polling day.

(2) A candidate who wins an election who commits an offence under this section is liable to have his election declared void and be disqualified from taking office.

(3) A person who commits an offence under this section is liable to be prohibited from entering the Guild Union for such period as may be determined by the Electoral Complaints Committee.

(4) For the purposes of this section, "intoxicating liquor" includes every description of spirits, wines, ale, beer, porter, stout, cider, perry and other malt liquor and any fermented or distilled liquor.

Defamatory statements

76. (1) It shall be an electoral offence to, in the course of campaigning, make, or conspire in the making of, statements prohibited by section 62(4), notwithstanding whether those statements are included in campaign material or not.

(2) A candidate who commits an offence under this section is liable to have his campaign suspended or to be disqualified as a candidate; and a candidate who wins an election who commits such an offence is liable to have his election declared void and be disqualified from taking office.

Campaigning in prohibited areas

77. (1) It shall be an election offence to engage in campaigning in a prohibited area contrary to section 63.

(2) A candidate who commits an offence under this section is liable to have his campaign suspended or to be disqualified as a candidate.

Offences related to campaign material

78. (1) It shall be an election offence to publish, by any means, campaign material which has not been authorised for publication by the Returning Officer in accordance with the provisions of section 62.

(2) It shall be an election offence to publish, by any means, campaign material which includes material prohibited by section 62(5).

(3) A candidate who commits an offence under this section is liable to have his campaign suspended or be disqualified as a candidate.

References to candidates in this Part

79. For the avoidance of doubt, the provisions of section 60 shall apply to this Part, so that any reference to the commission of an act by a candidate in this Part shall be construed to include the commission of an act by the campaign of a candidate and any official or supporter of that campaign as defined in section 60.

Power to except innocent acts from being an election offence

80. Where, if it is shown to the Electoral Complaints Committee by such evidence as to the Commission seems sufficient,

(a) that any act or omission of any person would by virtue of this *Code* be an election offence; and

(b) that the act or omission arose from inadvertence or from accidental miscalculation or from some other reasonable cause of a like nature, and in any case did not arise from any want of good faith,

and in the circumstances it seems just that that person should not be subject to any of the consequences of the act or omission set out in this *Code*, then the Commission may order that the act or omission of the person be an exception to the provisions of this *Code*, and thereupon, no person shall be subject to any of the consequences under this *Code* for the said act or omission.

Part 2

Election Complaints

Filing of election complaints

81. (1) Subject to the provisions of this section, a person who believes that there are grounds for the making of an election complaint may file such an election complaint with the Returning Officer, and Secretary of the Electoral Complaints Committee, in such form as the Electoral Complaints Committee shall prescribe.

(2) A person may only file an election complaint for the purposes of subsection (1) if he is qualified to vote in the election in respect of which he is filing the complaint.

(3) Where an election complaint filed for the purposes of subsection (1) concerns a complaint against the Returning Officer, the complaint shall be filed with the Secretary to the Electoral Complaints Committee, only, in such form as is prescribed.

(4) The election complaint referred to in subsection (1) shall set out the grounds for the complaint.

(5) Without derogating from the provisions of section 55, a person may file an election complaint in relation to the conduct of any election at any time prior to the deadline set out in section 55.

Grounds for election complaints

82. An election complaint may be filed in respect of an election, where any person alleges:

(a) that any provision of the *Constitution*, this *Code* or any by-law has been, or is likely to be, contravened;

(b) that an election offence has been, or is likely to be committed; or

(c) that any official, upon whom this *Code* has conferred powers or imposed duties, has misconducted himself in that office or has neglected his duties, in relation to the election.

Procedure for receipt of election complaints

83. (1) The Returning Officer shall notify the Electoral Complaints Committee of every election complaint received under section 81(1) within two days of the receipt of that complaint.

(2) Where an election complaint is filed in the circumstances described in section 81(3), the Secretary to the Electoral Complaints Committee shall notify the Returning Officer of the complaint and the contents thereof within two days of its receipt.

Adjudication of election complaints

84. (1) In the case of an election complaint filed before the polling day in the election about which the complaint is made, the Returning Officer shall have the authority to determine the complaint and may make all such orders in connection therewith as may be necessary.

(2) A person who is aggrieved by a decision of the Returning Officer made under subsection (1) shall have the right to apply to the Electoral Complaints Committee for the review of that decision, and the Electoral Complaints Committee may affirm or quash such decision, in whole or in part, and may substitute its own decision in place of that rendered by the Returning Officer.

(3) In the case of an election complaint filed after the polling day in the election about which the complaint is made and before the time limit set out in section 55, the Electoral Complaints Committee shall have original jurisdiction for the determination of such a complaint and may make all such orders in connection therewith as may be necessary.

(4) A person who is aggrieved by a decision of the Electoral Complaints Committee may appeal that decision to the Electoral Complaints Appeal Tribunal, which may affirm

or reverse that decision, in whole or in part, and may substitute its own decision in place of the impugned decision or remit the matter back to the Electoral Complaints Committee.

(5) The Electoral Complaints Committee and the Electoral Complaints Appeals Tribunal shall, upon the determination of an election complaint, issue a written judgement which shall be made publicly available and distributed to the Returning Officer and the parties to the complaint.

(6) In making a decision under this section, a decision-maker shall apply the rules of natural justice and procedural fairness.

(7) The complainant shall bear the burden of proof and the standard of proof shall be a balance of probabilities.

(8) A decision of the Returning Officer shall be binding, unless quashed by the Electoral Complaints Committee, and a decision of the Electoral Complaints Committee is binding unless reversed by the Electoral Complaints Appeal Tribunal, and decisions of the Tribunal are final and binding.

Filing of appeals of decisions of the Electoral Complaints Committee

85. (1) An appeal of a decision of the Electoral Complaints Committee to the Electoral Complaints Appeal Tribunal filed under section 84(4) shall be made to the Secretary to the Tribunal in such form as may be prescribed by the Tribunal.

(2) An appeal made under subsection (1) shall be filed –

(a) In the case of a decision made before polling day, within two days of the impugned decision of the Electoral Complaints Committee; or

(b) In the case of any other decision, within ten days of the impugned decision.

Part 3

Disciplinary Powers of the Returning Officer

Powers of Returning Officer

86. (1) When it appears to the Returning Officer that there are grounds for the making of an election complaint, the Returning Officer may investigate the matter and shall have the power to make such orders as he deems fit, being remedies set out in Part 6.

(2) For the avoidance of doubt, in exercising the powers set out in subsection (1), the Returning Officer may act pursuant to an election complaint filed in accordance with Part 2 of this Chapter, or he may act on his own initiative.

(3) The Returning Officer shall, when exercising his powers under this section, act in accordance with the principles of natural justice and procedural fairness.

(4) The Returning Officer shall not exercise the powers conferred by the section after polling day, at which time the Electoral Complaints Committee shall assume original jurisdiction for the determination of election complaints,

Provided that the Returning Officer may, after polling day, apply to the Electoral Complaints Committee for the making of certain orders in relation to an election, when it appears to him that such action is necessary.

Part 4

Electoral Complaints Committee

Establishment of Electoral Complaints Committee

87. (1) There shall be an Electoral Complaints Committee which shall have such powers as may be conferred by the *Constitution*, this *Code*, or any by-law.

(2) Where the phrase 'Complaints Committee' appears within the Electoral code, it shall be construed to mean the 'Electoral Complaint Committee'

Composition of Electoral Complaints Committee

88. (1) The Electoral Complaints Committee shall consist of –

(a) A person nominated by the Director of the Office of Student Services;

(b) 1 person appointed from among the teaching staff of the Campus ("Faculty Adjudicators"), where possible, in the manner set out in section 89; and

(c) 4 persons appointed from among the general membership of the Campus ("Student Adjudicators") in the manner set out in section 89.

(2) The Returning Officer shall, upon consultation with the Guild Elections Office, appoint one of the four student adjudicators as Chairperson of the Elections Complaint Committee.

(a) The recommendation of the Director of the Office of Student Services must be considered when determining the Chairperson of the Elections Complaint Committee.

Appointment of Adjudicators

89. (1) The Returning Officer shall be responsible for ensuring that the Electoral Complaints Committee is empanelled no later than the third week of the first semester.

(2) The person referred to in section 88(1)(b) shall be appointed by the Returning Officer, after consultation with the Constitutional Chairperson.

(3) The persons referred to in section 88(1)(c) shall be appointed by the Returning Officer, after consultation with the Guild Elections Office.

(4) The Returning Officer shall issue to every person appointed to the Commission a warrant of appointment in the form set out in the *Third Schedule*.

(5) Every person appointed to the Commission shall make a declaration of office in the form set out in the *Third Schedule*.

(6) A person is not qualified to be appointed as a member of the Commission if he is

(a) an officer of the Guild Elections Office;

(b) a candidate for election to any office on the Guild of Students;

(c) a member of the Electoral Complaints Appeals Tribunal; or

(d) a Guild Councillor.

(7) The seat of any Adjudicator, who, during his tenure, becomes disqualified by virtue of subsection (6), shall immediately become vacant.

Term of Adjudicators

90. Subject to the provisions of section 89 and 91, members of the Electoral Complaints Committee shall serve for a term of one year.

Removal of Adjudicators

91. (1) Any member of the Electoral Complaints Committee, may be removed from office, for cause, by the Guild Council, provided that three-quarters of the members thereof approve such removal as well as a two-thirds majority of the general membership present and voting at a Special General Meeting called for that purpose.

(2) Notwithstanding the provisions of this section, any member of the Commission may resign by instrument in writing to the Chairman of the Commission, or in the case of the Chairman, to the Returning Officer, and the member shall be replaced promptly.

Complaints to be heard by panel

92. (1) When an election complaint has been filed in accordance with section 81, a panel of the Electoral Complaints Committee shall hear the complaint.

(2) Not all adjudicators appointed to the Elections Complaint Committee shall sit at the same time at any one hearing, but at each hearing, the panel referred to in subsection (1) shall consist of –

(a) The Chairman of the Commission;

(b) The representative recommended by the Office of Student Services;

(c) 1 Faculty Adjudicator; and

(d) At least 2 Student Adjudicators.

At no time should an even number of adjudicators hear and determine any matter that falls within the jurisdiction of the Complaints Committee.

(3) Any person selected by the Chairman under this section may recuse himself from hearing any complaint if, in his view, there are reasons that may cause others to think that he cannot impartially execute his functions.

(4) Where no Faculty Adjudicator can be selected to serve on the panel, by reason of unavailability or recusal, a Adjudicator *ad hoc* may be appointed by the Chairman of the Commission, provided that such a person also be a member of the teaching staff.

(5) The Secretary to the Commission shall notify the Returning Officer and the parties to the complaint of the composition of the panel selected by the Chairman.

Secretary to the Commission

93. The Complaints Committee shall appoint one of their members, not being the Chairman, to serve as the Complaints Committee's Secretary.

Conduct of hearings

94. (1) As soon as practicable after the enactment of this *Code*, the Electoral Complaints Committee shall promulgate rules for the conduct of its proceedings, in collaboration with the Constitutional Chairperson and the Returning Officer.

(2) The Commission shall conduct its proceedings in a manner consistent with the principles of transparency, confidentiality and procedural fairness.

Part 5

Electoral Complaints Appeal Tribunal

Establishment of Electoral Complaints Appeal Tribunal

95. (1) There shall be an Electoral Complaints Appeal Tribunal which shall have jurisdiction to hear and determine appeals from any decision or order of the Electoral Complaints Committee.

(2) In this Part, "Tribunal" refers to the Electoral Complaints Appeal Tribunal.

Composition of Tribunal

96. The Tribunal shall consist of –

(a) A person nominated by the Director of the Office of Student Services;

(b) 1 person appointed from among the teaching staff of the Campus ("Faculty Member") in the manner set out in section 97; and

(c) 1 person appointed from among the general membership of the Campus ("Student Member") in the manner set out in section 97.

Appointment of Tribunal members

97. (1) The Returning Officer shall be responsible for ensuring that the members of the Tribunal are appointed no later than the third week of the first semester.

(2) The person referred to in section 96(1)(b) shall be appointed by the Returning Officer, after consultation with the Constitutional Chairperson.

(3) The person referred to in section 96(1)(c) shall be appointed by the Returning Officer, after consultation with the Constitutional Chairperson.

(4) The Returning Officer shall issue to every person appointed to the Tribunal a warrant of appointment in the form set out in the *Third Schedule*.

(5) Every person appointed to the Tribunal shall make a declaration of office in the form set out in the *Third Schedule*.

(6) A person is not qualified to be appointed as a member of the Tribunal if he is

(a) an officer of the Guild Elections Office;

(b) a candidate for election to any office on the Guild of Students;

(c) a member of the Electoral Complaints Committee; or

(d) a member of the Guild Council.

(7) The seat of any Adjudicator, who, during his tenure, becomes disqualified by virtue of subsection (6), shall immediately become vacant.

Term of Tribunal members

98. Subject to the provisions of section 97 and 99, members of the Electoral Complaints Committee shall serve for a term of one year.

Removal of Tribunal members

99. (1) Any member of the Electoral Complaints Committee, may be removed from office, for cause, by the Guild Council, provided that three-quarters of the members thereof approve such removal as well as a two-thirds majority of the general membership present and voting at a Special General Meeting called for that purpose.

(2) Notwithstanding the provisions of this section, any member of the Commission may resign by instrument in writing to the Returning Officer, and the member shall be replaced promptly.

Secretary to the Tribunal

100. The Tribunal shall appoint one of their members to serve as the Tribunal's Secretary.

Conduct of hearings

101. (1) As soon as practicable after the enactment of this *Code*, the Tribunal shall promulgate rules for the conduct of its proceedings, in collaboration with the Constitutional Chairperson and the Returning Officer.

(2) The Commission shall conduct its proceedings in a manner consistent with the principles of transparency, confidentiality and procedural fairness.

Part 6

Remedies for Election Complaints

Power to order effective remedies

102. The Electoral Complaints Committee or the Electoral Complaints Appeal Tribunal, as the case may be, shall have the power to order effective remedies for the purpose of resolving any election complaint, which may include remedies in addition to those set out in section 103.

Remedies which may be ordered

103. (1) The following remedies may be ordered in connection with an election complaint -

(a) A declaration;

(b) A formal reprimand;

(c) An apology order;

(d) A disqualification order;

(e) A recount order; and

(f) An annulment order.

(2) Where it is found that an election offence has been committed, the relevant penalty is set out in Part 1 of this Chapter.

(3) For the purposes of this section,

(a) a "formal reprimand" is a written statement containing adverse findings against a person;

(b) an "apology order" is an order requiring a person to apologise, and such an order may be in whatever terms, and may require the apology to be made to another person, a group of persons or the students at large;

(c) a "disqualification order" is an order –

(i) disqualifying a candidate from participation in an election;

(ii) disqualifying a person who has been elected either from taking office,

(iii) disqualifying a person who has taken office, from continuing in office, or

(iv) disqualifying a person from being a candidate in the future;

(d) a "recount order" is an order requiring the ballots in an impugned election to be recounted; and

(e) an "annulment order" is an order to invalidate the results of an impugned election and cause the election to be rerun, whether subject to any conditions or not.

(4) An annulment order shall only be ordered if it appears to the Electoral Complaints Committee, or the Electoral Complaints Appeal Tribunal, as the case may be, that the irregularity was of such magnitude as would have plausibly altered the final result.

(5) Where anyone who is summoned to appear before the Complaints Committee or the Tribunal does not comply with the summons, then the other party shall be deemed automatically to have succeeded in their action or in their defence of an action, whichever the case may be, even if that other party has made no submissions.

(6) Where an order not being a disqualification order is made against a candidate and the candidate does not comply with the order, then the order shall be substituted with a disqualification order.

Provisions for disqualification of councillor-elect

104. Where a person who has won election to an office on the Guild Council has been disqualified from taking office, the election to that office shall be rerun.

Provisions for disqualification of councillor who has taken office

105. Where a Guild Councillor has been disqualified from continuing in office, his seat shall be declared vacant and the provisions of the *Constitution* and this *Code* regarding vacancies shall take effect.

CHAPTER VII

MISCELLANEOUS

Holding of by-elections to fill casual vacancies

106. (1) Whenever

(a) a vacancy arises in an office of the Guild Council which is an elected office, as defined in section 56, and

(b) a by-election is required in accordance with the provisions of section 54 of the Constitution,

the Returning Officer shall designate as polling day for the by-election a day no later than twenty-one days after the vacancy has arisen.

(2) For the avoidance of doubt, no by-election shall be required to be held under this section, where such a by-election would have to be held in

(a) December, or

(b) within four weeks of the Annual General Election.

(3) In the case of all vacancies falling within the provisions of subsection (2)(a), the Returning Officer shall arrange for a by-election to be held no later than the 15th day of February.

(4) In the case of all vacancies falling within the provisions of subsection (2)(b), the Council of the Guild of Students may appoint a person to that office as if it were an appointed office.

Annual General Election rules to apply *mutatis mutandis*

107. (1) The provisions of Chapter III, relating to the Annual General Election, shall apply *mutatis mutandis* to by-elections held under section 106,

Provided that the Returning Officer shall not be bound to follow the timelines stipulated in that Chapter.

(2) For the avoidance of doubt, all other provisions of this Code shall apply to by-elections *mutatis mutandis*.

Provision for virtual elections

108. (1) If, in the judgement of the Returning Officer, it is expedient to hold an election under this *Code* by the use of a virtual platform, then the Returning Officer shall make the necessary provision for the holding of such an election.

(2) The Returning Officer shall ensure that any virtual platform used in connection with an election under this *Code* is secure, maintains the secrecy of the votes and has requisite safeguards to prevent electoral manipulation.

(3) Where the Returning Officer has selected a virtual election platform under this section, he shall publish a statement to the membership of the Guild averring that the platform meets the requirements of subsection (2) and setting out the basis for such averment.

Procedure for amending this Code

109. (1) Any provision of this *Code* may be altered at any time in accordance with the provisions of this section.

(2) Whenever it appears to the Constitutional Chairperson and the Returning Officer that an amendment of this *Code* is desirable, the Constitutional Chairperson and the Returning Officer shall appoint an *ad hoc* committee to examine proposals for amendment and draft such an amendment.

(3) The *ad hoc* committee referred to in subsection (2) shall be chaired by the Constitutional Chairperson and the Returning Officer and shall comprise such persons as the two co-chairs shall determine.

(4) For the avoidance of doubt, any member of the Guild may request that the Constitutional Chairperson and Returning Officer appoint an *ad hoc* committee under subsection (2).

(5) The Guild Council may direct the Constitutional Chairperson and Returning Officer to appoint an *ad hoc* committee under subsection (2).

(6) Upon the completion of its work, the *ad hoc* committee shall present its amendments to the Guild Council, which if passed by a simple majority of the Council,

shall be presented to the general membership at either the Guild Annual General Meeting, or a Special General Meeting called for that purpose.

(7) This *Code* shall be altered if an absolute majority of the members of the Guild present and voting at the General Meeting provided for in subsection (6) approve the proposed amendment.

(8) Before every General Meeting called for the purpose of subsection (6), the Constitutional Chairperson shall cause the proposed alterations to be published to the General Membership by means of the Notice Boards provided on the Campus for Guild Notices and/or circulated through the direct and social media communication channels used by the Guild and the University no less than five days before the date on which the General Meeting is to take place.

(9) The quorum for a General Meeting held under the provisions of subsection (6) shall be fifty members.

(10) Notwithstanding anything contained in this section, this *Code* may be amended by resolution at an Extraordinary General Meeting, called in accordance with the provisions of section 89 of the *Constitution*, approved by three-quarters of the members, present and voting.

(11) An amendment to this *Code* shall take effect from the date of the General Meeting at which it was approved, or from such other date as may be provided for in the amendment.

(12) The provisions of this *Code* related to the functioning of the Electoral Complaints Committee or the Electoral Complaints Appeals Tribunal shall not take effect until the following academic year, unless the Commission or Tribunal, as the case may be, signify their consent to the amendments taking effect at an earlier date.

(13) The Constitutional Chairperson shall cause alterations validly passed in accordance with the provisions of this section to be inserted into the *Code* and re-published.

(14) The Constitution Committee shall have the power to recommend typographical amendments and amendments referring to secondary documentation, including by-laws, to

be made to this constitution, subject to the concurrence of a majority of all the members of the Guild Council,

Provided that any such amendment shall not be any which would affect the substance of any provision.

(15) For the purposes of this section, references to amending this *Code* or any particular provision thereof include references –

(a) to repealing it, with or without re-enactment thereof or the making of different provision in lieu thereof;

(b) to modifying it (whether by omitting, amending or overriding any of its provisions or inserting additional provisions in it or otherwise); or

(c) to suspending its operation for any period or terminating any such suspension.

CHAPTER VIII

CONDUCT OF INVOLVED PARTIES

Scope of 'Involved Parties'

110. (1) For the purposes of this chapter, an 'involved party' is any member of the Guild Elections Office, Guild Council, Elections Complaint Committee or Elections Complaint Appeal Tribunal

(2) Involved parties are to refrain from forms of interacting with, endorsing or active campaigning for or on behalf of any candidate in any election.

(3) For the avoidance of doubt, the following activities are strictly prohibited –

(a) Interaction with campaign material where their name, face or office is visible to other students;

(b) Reaction in any manner to any post, message or media circulated on social media in respect of a candidate's campaign;

(c) Commenting on campaign-related content; and

(d) Sharing or reposting campaign materials, messages and advertisments.

(4) Any breach of this section will entitle the aggrieved party to file a complaint to the Elections Complaint Committee

FIRST SCHEDULE

NOMINATION FORMS

Form A

Section 19

Nomination Form

TO: The Returning Officer, University of the West Indies, Cave Hill Campus

I, ……....., a fully matriculated student of the University of the West Indies, Cave Hill Campus, by this instrument, apply to run for election to the office of ……..... on the Guild Council;

And I do aver that I have met all of the qualifications for nomination as set out in section __ of the Electoral Code of the Guild of Students and that I am not subject to any disqualification for nomination as provided for in that Code or in the Constitution of the Guild of Students;

And I do aver that the information set out in the Schedule is to the best of my knowledge accurate and true;

Signed this …… day of …… 20…….

Signature) …….

Name)

Proposed by:

Signature) …….

Name)

Seconded by:

Signature) …….

Name)

SCHEDULE

Applicant's Information

Name of Applicant: …….. (Your name as printed here will appear on the ballot)

Post Contesting: ……...

Faculty: ……...

Year/Level: ……...

Part-Time/Full-Time: ☐ Part-Time ☐ Full-Time

Student ID #: ……...

Telephone No.: ……...

Email address: ……...

Proposer's Information

Name of Proposer: ……...

Faculty: …… **Student ID #:** ……

Telephone No.: ……...

Email address: ……...

Seconder's Information

Name of Proposer: ……...

Faculty: …… **Student ID #:** ……

Telephone No.: ……...

Email address: ……...

Form B

Section 22

Confirmation of Candidacy Declaration Form

TO: The Returning Officer, University of the West Indies, Cave Hill Campus

I, ……....., a confirmed applicant for election to the office of ……..... on the Council of the Guild of Students, do by this instrument confirm my desire to be a candidate in the election for the said office;

And I do aver that I have satisfied all of the requirements of the candidacy filing period as set out in Part 3 of Chapter III of the Electoral Code of the Guild of Students;

Signed this …… day of …… 20…….

Signature) …….

Name)

In witness whereof:

Signature) …….

Name)

Form C

Section 22

Information Release Consent Form

TO: The Returning Officer, University of the West Indies, Cave Hill Campus

I, ……, do hereby authorise the following information to be released by the Returning Officer or his delegate –

- My name,
- The office to which I am seeking election,
- Photographs which I have provided bearing my true likeness,
- The manifesto which I have provided, and
- Information generally necessary to the proper conduct of this election.

I further acknowledge that a condition of candidacy in this election is the authorisation of the release of this information, so that I may at any time, in writing, revoke my consent for the release of any information listed herein, but I acknowledge that my candidacy will be impliedly withdrawn.

Signed this …… day of …… 20…….

Sign: ……

Name: ……

Form D

Section 22

Elections Complaint Resolution Agreement Form

TO: The Returning Officer, University of the West Indies, Cave Hill Campus

I, ……, do hereby acknowledge and accept the authority, jurisdiction, powers and procedure of the Electoral Complaints Committee established and constituted pursuant to section _____ of the Electoral Code of the Guild of Students of the University of the West Indies, Cave Hill Campus ("the Electoral Code");

And notwithstanding the foregoing, I do further accept the authority, powers and procedure of the Electoral Complaints Appeal Tribunal, in relation to its function as an appellate tribunal for orders made by the Electoral Complaints Committee, pursuant to section ____ of the Electoral Code;

And, I do further pledge to faithfully pursue the remedies permitted under the Electoral Code and to abide by the orders made thereunder.

Signed this …… day of …… 20…….

Sign: ……

Name: ……

SECOND SCHEDULE

ELECTION FORMS

Form A

Section 33

Declaration of Election Officials

I, ... having been appointed Returning Officer / Deputy Returning Officer / Assistant Returning Officer / Polling Station Presiding Officer / Polling Clerk for this Annual General Election declare that I shall faithfully perform the duties pertaining to the said office of ....., without partiality, fear, favour or affection and that I shall maintain and aid in maintaining secrecy in connection with the election.

Given under my hand, this …… day of …… 20…….

Signature) …….

Name)

In witness whereof:

Signature) …….

Name)

Form B

Section 42

Declaration to be made by the Companion of an Incapacitated Voter at an Election

I, ..., having been requested to assist ..... to record his vote at the election now being held, hereby declare that I shall faithfully and truly record the vote of the said person in the manner so requested of me and that I shall not disclose the manner in which the said person so requested me to vote and that I have not previously assisted any blind or incapacitated person to vote at the said election.

Given under my hand, this …… day of …… 20…….

Signature) …….

Name)

I, the undersigned, being the supervisor for the polling station ……, hereby certify that the above declaration, having been first read to the above-named declarant, was signed by the declarant in my presence.

Signature) …….

Name)

Form C

Section 51

DECLARATION OF RESULTS

I, ……., the Returning Officer of the Guild of Students of the University of the West Indies, Cave Hill Campus, declare the results for the Annual General Election / Contingent Election / By-Election / Recall Election held on the …… day of …… 20……. to fill the office of …… as follows:

[INSERT NAME]	-	……
[INSERT NAME]	-	……
[INSERT NAME]	-	……
[INSERT NAME]	-	……
Re-Open Nominations	-	……
Rejected Ballots	-	……
Total Votes Cast	-	……

I, therefore, declare …… as the duly elected …… …… of the Guild of Students for the academic year, 20……. - 20…….

Given under my hand, this …… day of …… 20…….

……

Returning Officer

Witnessed by:

……

Name)

Date)

THIRD SCHEDULE

Section 89 and 97

Warrant of Appointment for Electoral Complaints Committeeers and Members of the Electoral Complaints Appeal Tribunal

INSTRUMENT OF APPOINTMENT

To: ……

I, ……., the Returning Officer of the Guild of Students of the University of the West Indies, Cave Hill Campus, in the exercise of the powers vested in me by section 89 / 97 of the Electoral Code of the Guild of Students of the University of the West Indies, Cave Hill Campus, do hereby appoint you to be a member of the Electoral Complaints Committee / Electoral Complaints Appeal Tribunal for a period of one year with effect from the …… day of …… 20…….

Given under my hand, this …… day of …… 20…….

……

Returning Officer

Declaration of Office

I, ..., having been appointed a member of the Electoral Complaints Committee / Electoral Complaints Appeal Tribunal declare that I shall faithfully perform the duties of that office without partiality, fear or favour, or affection or ill-will, and that I shall do right to all manner of all people according to the laws of the Guild of Students and that I shall maintain, and aid in maintaining, the confidentiality of all proceedings of the Electoral Complaints Committee / Electoral Complaints Appeal Tribunal.

Given under my hand, this …… day of …… 20…….

Signature) …….

Name)

In witness whereof:

Signature) …….

Name)